



CHAPTER cxli.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the Urban Districts of Ballymena Ballymoney Banbridge Bangor Carrickfergus Dromore Holywood Larne Lisburn Newry Newtownards Portrush and Warrenpoint and the Counties of Antrim Armagh and Down.

A.D. 1903.

[11th August 1903.]

WHEREAS the Local Government Board for Ireland have made the Provisional Orders set forth in the schedule hereto under the Local Government (Ireland) Acts 1898 to 1902 :

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 7) Act 1903.

Short title.

A.D. 1903.

SCHEDULE.

COUNTY OF ANTRIM.

Antrim. Provisional Order to alter the financial relations between the Urban County Districts of Ballymena Ballymoney Carrickfergus Larne Lisburn and Portrush in the County of Antrim and the County of Antrim.

WHEREAS the councils of the urban county districts in the county of Antrim (in this Order referred to as “the district councils”) have represented to the Local Government Board for Ireland (in this Order referred to as “the Local Government Board”) that the financial relations between the said urban districts and the county of Antrim are inequitable :

45 Vict.
c. xxxii.

57 Vict.
c. xviii.

1 Edw. 7. c. 28.
And whereas an Order altering the said financial relations would alter the provisions of the Ballymena Town Provisional Order 1882 (in this Order referred to as “the Order of 1882”) confirmed by the Local Government Board (Ireland) Provisional Orders Confirmation (Ballymena &c.) Act 1882 and of the Lisburn Town Provisional Order 1894 (in this Order referred to as “the Order of 1894”) confirmed by the Local Government Board (Ireland) Provisional Order Confirmation (No. 4) Act 1894 :

And whereas application for this Order was made to the Local Government Board within two years after the passing of the Local Government (Ireland) Act 1901 :

And whereas the Local Government Board having inquired into the circumstances think it just to make an Order altering the said financial relations :

Now therefore We the Local Government Board in pursuance of the powers given to Us by the Local Government (Ireland) Acts 1898 to 1902 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. As from the first day of April in the year one thousand nine hundred and one the district councils shall anything in any Act to the contrary notwithstanding be exempt from contributing to the following county-at-large charges of the county of Antrim namely :—

(a) Salaries pensions and other expenses of officers other than the secretary of the county council employed in the offices of the said secretary ;

(b) Salaries pensions and expenses of the deputy surveyor and assistant surveyors and of officers other than the county surveyor employed in the offices of the county surveyor ;

[3 EDW. 7.] *Local Government Board (Ireland)* [Ch. cxli.]
Provisional Orders Confirmation (No. 7) Act, 1903.

- (c) Expenses of printing books and forms other than printing provided for by subsections (2) and (3) of section 96 of the Local Government (Ireland) Act 1898; A.D. 1903.
Antrim.
61 & 62 Vict.
c. 37.
- (d) Expenses of publication of notices and documents not directly affecting the said urban county districts;
- (e) Expenses of improvements or repairs to premises or portions of premises used solely as offices of the county council;
- (f) Cost of legal advice and law costs incurred in respect of matters not directly affecting the said urban county districts;
- (g) Salaries and expenses of collectors of poor rate including all expenses on account of the superannuation or compensation of those collectors; and
- (h) Fees for audit of accounts of the county council.

2. Article 1 of the Order of 1882 shall have effect as if the words "main roads and other" were inserted therein after the word "except" wherever that word occurs in the said Article.

3. The annual contributions of thirty-four pounds seventeen shillings and fourpence and one hundred and sixty-five pounds two shillings and eightpence mentioned in Article 3 of the Order of 1882 shall be appropriately credited under the directions of the Local Government Board to the rural districts including the portions of the baronies of Lower Antrim and Lower Toome lying outside the urban district of Ballymena.

4. Article 1 of the Order of 1894 shall have effect as if the words "main roads and other" were inserted therein after the word "except" where that word first occurs in the said Article.

5. The annual sum of one hundred and sixty pounds mentioned in Article 3 of the Order of 1894 shall be credited under the directions of the Local Government Board to the rural districts including the portion of the barony of Upper Masserene lying outside the urban district of Lisburn.

6. The county council of Antrim shall contribute as from the first day of April one thousand eight hundred and ninety-nine the annual sum of two hundred pounds to the council of the urban district of Ballymena and the annual sum of one hundred and sixty pounds to the council of the urban district of Lisburn in respect of the expense of the maintenance of roads within the said urban districts.

7. So much of any enactment in any Act or provision in any Provisional Order as is inconsistent with any provisions in this Order shall cease to have effect.

8. The costs and expenses of the district councils and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be contributed by the district councils in proportion to their rateable value and be paid out of any rate applicable to

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A.D. 1903. defraying the expenses incurred by the respective councils in the execution of the Public Health (Ireland) Acts 1878 to 1896.

9. This Order may be cited as the County of Antrim (Financial Relations) Order 1903.

Given under our seal of office this twenty-eighth day of April one
thousand nine hundred and three.

(L.S.) (Signed) H. A. ROBINSON.

COUNTIES OF DOWN AND ARMAGH.

Down and Armagh. Provisional Order to alter the financial relations between the Urban County Districts of Banbridge Bangor Dromore Holywood Newry Newtownards and Warrenpoint in the County of Down and the County of Down and between the Urban County District of Newry and the County of Armagh.

WHEREAS the councils of the urban county districts in the county of Down have presented memorials to the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") alleging that the financial relations between the said urban districts and the county of Down are inequitable :

And whereas the council of the urban county district of Newry have presented a memorial to the Local Government Board alleging that the financial relations between the said district and the county of Armagh are inequitable :

And whereas an Order in pursuance of the said memorials would alter the provisions of the Newry Improvement and Water Act 1871 (in this Order referred to as "the Act of 1871"):

And whereas the said memorials were presented to the Local Government
1 Edw. 7. c. 28. Board within two years after the passing of the Local Government (Ireland)
Act 1901 :

And whereas the Local Government Board having inquired into the circumstances think it just to make an Order altering the said financial relations :

Now therefore We the Local Government Board in pursuance of the powers given to Us by the Local Government (Ireland) Acts 1898 to 1902 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect :—

1. As from the first day of April in the year one thousand eight hundred and ninety-nine the councils of the urban county districts in the county of

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Provisional Orders Confirmation (No. 7) Act, 1903.

Down shall anything in the Act of 1871 to the contrary notwithstanding be exempt from contributing to the following county-at-large expenses namely:—

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- (a) Salaries pensions and other expenses of assistant surveyors and officers (other than the county surveyor) employed in the offices of the said surveyor and officers (other than the secretary and accountant of the county council) employed in the offices of the said secretary ;
- (b) Expenses of any printing not referred to in subsections (2) and (3) of section 96 of the Local Government (Ireland) Act 1898 ;
- (c) Expenses of publication of notices and documents not directly affecting the said urban county districts ;
- (d) Expenses of improvement and repairs to premises or portions of premises used solely as offices of the county council ;
- (e) Cost of legal advice and other law costs incurred in respect of matters not directly affecting the said urban county districts ;
- (f) Salaries and expenses of collectors of poor rate including all expenses on account of the superannuation or compensation of those collectors ;
and
- (g) Fees for audit of accounts of county council.

61 & 62 Vict.
c. 37.

2. Section 18 of the Act of 1871 (which provides for the payment by the Town Commissioners of Newry of the expenses of borough voters lists) shall be repealed and so much of any enactment in that Act as relates to any contribution by the town of Newry to the county of Armagh shall cease to have effect.

3. The costs and expenses of the councils of the urban county districts affected by this Order and of the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be defrayed by the said councils in proportion to their rateable value and shall be paid out of any rate applicable to defraying the expenses incurred by the respective councils in the execution of the Public Health (Ireland) Acts 1878 to 1896.

4. This Order may be cited as the Counties of Down and Armagh (Financial Relations) Order 1903.

Given under our seal of office this twenty-seventh day of April one thousand nine hundred and three.

(L.S.)

(Signed) H. A. ROBINSON.

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[Ch. cxl.] Local Government Board (Ireland) [3 EDW. 7.]
Provisional Orders Confirmation (No. 5) Act, 1903.

A.D. 1903.

*Portadown and
Banbridge.*

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
5	Margin of river 2a. 3r. 1p. -	The Earl of Roden.	- - -	—
6	Half bed and soil of river containing 3r. 38p.	Ditto	- - -	The Earl of Roden.
7	Public road containing 2a. 3r. 0p.	Ditto	- - -	The County Council of the County Down and the Rural District Council of Kilkeel.
	Part of the townland of Fofanybane as follows :—			
1	Mountain pasture containing 39a. 1r. 13p.	Ditto	- - -	—
2	Public road containing 1a. 0r. 38p.	Ditto	- - -	The County Council of the County Down and the Rural District Council of Kilkeel.
3	Mountain pasture containing 185a. 1r. 13p.	Ditto	- - -	—
4	Mountain pasture containing 9a. 1r. 20p.	Ditto	- - -	—
5	Half bed and soil of river containing 31p.	Ditto	- - -	The Earl of Roden.
	Part of the townland of Moyad as follows :—			
1	Mountain pasture containing 223a. 1r. 21p.	The Earl of Annesley.	- - -	—
2	Half bed and soil of river and townland boundary containing 2r. 15p.	Ditto	- - -	The Earl of Annesley.
3	Mountain pasture containing 2a. 32p.	Ditto	- - -	Sarah and Elizabeth McKnight.
4	Half bed and soil of river and townland boundary containing 1r. 30p.	Ditto	- - -	The Earl of Annesley
5	Bed and soil of river containing 1r. 19p.	Ditto	- - -	Ditto.
	Part of the townland of Cock mountain common as follows :—			
1	Mountain pasture containing 283a. 1r. 28p.	Ditto	- - -	—
2	Half bed and soil of river containing 2r. 14p.	Ditto	- - -	The Earl of Annesley.
3	Half bed and soil of river containing 1r. 30p.	Ditto	- - -	Ditto.

Given under our seal of office this twenty-fourth day of April one thousand nine hundred and three.

(L.S.)

(Signed)

H. A. ROBINSON.
WM. L. MICKS.

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